

MINUTES OF MEETING
WAGONER COUNTY BOARD OF COMMISSIONERS
MONDAY, MAY 4, 2026

Location: **Commissioners Meeting Room – North Annex.**

Time: 9:00 AM

- I. The meeting was called to order at 9:03 a.m. by Chairman Randy Stamps and Roll was taken with the following response: Commissioner James Hanning, present; Commissioner Randy Stamps, present; Commissioner Tim Kelley, present.
- II. Prayer was led by Lori Hendricks and the Pledge of Allegiance was led by Commissioner Kelley.
- III. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Consent Agenda. The motion to approve passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
 - A. Approve or disapprove minutes of commission meeting held April 27, 2026.
 - B. Approve or disapprove the following labor waiver(s):
 1. Dump Dirt and asphalt millings off county right-of-way at 30546 E. 61st St. S. Broken Arrow, OK. Property Owner: Marty Castens, District 1.
 2. Dump asphalt millings off county right-of-way at 28351 E. 41st St. S. Broken Arrow, OK. Property Owner: Rusty Treat, District 1.
 - C. Approve or disapprove deposit(s)
 - D. Approve or disapprove Okay Fire Department request to appoint Billy Sims and Whitney Grigsby as Requisitioning officers and Zach Goad and Eric Brown as Receiving officers for account 1321-2-8205-2005.
 - E. Approve or disapprove Deed of Dedication for Homestead Hill LLC.
 - F. Reports
 1. Emergency Management weekly report
 2. Economic Development Director weekly report

3. Weekly Inmate Headcount report
 4. Maintenance weekly report
 5. Planning & Zoning weekly report
 6. E-911 weekly report
 7. I.T. weekly report
 8. Treasurer monthly Report for March 2026
- G. Approve or disapprove non-compliant Purchase Orders.
- H. Approve or disapprove cancellation of the following purchase order(s): #264270, #264271, #264272, #264289, #267745, #267817 to include warrant #2608.
- I. Approve or disapprove the following blanket purchase order(s): #267948, #267947.
- J. Approve or disapprove calendar claims.
- IV. No action was taken regarding Items removed from Consent Agenda.
- V. Action Items
- A. A motion was made by Commissioner Hanning and seconded by Commissioner Stamps to receive report of Jail Renovation from ECC. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
 - B. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to approve utility encroachment affidavit for State Project 32380, 273rd E Ave between Admiral and 21st, District 1. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
 - C. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve monthly donations for the Senior Citizen Centers in the amount of \$800.00. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
 - D. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Proclamation for Oklahoma Home and

Community Week, May 3 to May 9th, 2026. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

- E. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to approve Resolution #2026-054 zoning map amendment request in District 1, ZNE-02-2026, 4D Bryan, LLC. Location: 7464 S. 337th E. Ave. Broken Arrow, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- F. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to approve #2026-055 zoning map amendment request in District 1, ZNE-19-2026, Robert McLearn. Location: 7463 S. 336th E. Ave. Broken Arrow, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- G. A motion was made by Commissioner Kelley and seconded by Commissiong Hanning to approve Resolution #2026-056 zoning map amendment request in District 3, ZNE-20-2026, Jordan Green. Location: 20727 E. 191st St. S. Haskell, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye. (It was noted a clerical error existed on the resolution and corrected verbiage will be executed at the May 11, 2026 meeting).
- H. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Resolution #2026-057 zoning map amendment request in District 3, ZNE-07-2026, Joshua Moushon. Location: 14219 S. 241st E. Ave. Coweta, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye. (It was noted a clerical error existed on the resolution and corrected verbiage will be executed at the May 11, 2026 meeting).
- I. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to approve Resolution #2026-058 zoning map amendment request in District 2, ZNE-18-2026, Robert Ortiz. Location: 27592 E. 750 Rd. Wagoner, OK. The motion was passed with the following votes: Hanning, aye; Stamps, abstain; Kelley, aye.
- J. A motion was made by Commissioner Stamps and seconded by Commissioner Hanning to approve Resolution #2026-059 zoning map

amendment request in District 2, ZNE-23-2026, Earrak Cotton. Location: 69633 S. 220 Rd. Wagoner, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

K. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to table Resolution #2026-060 zoning map amendment request in District 3, ZNE-15-2026, Michael Field. Location: 7157 N. 50th St. W. Porter, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

L. A motion was made by Commissioner Hanning and seconded by Commissioner Stamps to approve Resolution #2026-061 Planned Development amendment request in District 1, PLD-01-2026, Emerald Falls Investment Company, L.L.C. Location: 6585 S. 305th E. Ave. Broken Arrow, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, abstain.

M. A motion was made by Commissioner Hanning and seconded by Commissioner Stamps to approve Resolution #2026-062 Preliminary Plat of Emerald Falls Tract 10 in District 1. Location: 6585 S. 305th E. Ave. Broken Arrow, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, abstain.

N. A motion was made by Commissioner Hanning and seconded by Commissioner Stamps to approve Resolution #2026-063 Final Plat of Emerald Falls Tract 10 in District 1. Location: 6585 S. 305th E. Ave. Broken Arrow, OK. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, abstain.

VI. Old Business

A. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to award Bid #2026-012 to the lowest bidder Mach 4 LLC at \$142,000 for demolition of building located at 308 NE 2nd. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

B. A motion was made by Commissioner Stamps and seconded by Commissioner Hanning to approve the implementation of CentralSquare

Records Management System (RMS) and Jail Management System (JMS) for the Wagoner County Sheriff's Office in the amount of \$210,000 to be paid for out of the Commissioners Use Tax Account. The motion was passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

VII. Financial Matters

A. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to approve Cook's Consulting, LLC Pay Request No. 3 in the amount of \$402,268.09 for Rural Water District No. 2 – Water System Improvements, Phase II. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

VIII. There was no New Business.

IX. There was no Public Comment.

X. Announcements: Commissioner Tim Kelley wishes an early Happy Birthday to County Clerk 1st Deputy Amanda Alsip.

XI. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to enter Executive Session at 9:34 a.m. for consideration, action, discussion and possible vote relative to the case identified below to enter into Executive Session, upon the advice and request of legal counsel, to discuss all aspects of this litigation with counsel, including (but not limited to) responding to requests in discovery. Public disclosure of these confidential communications would seriously impair the ability of the Board of County Commissioners for Wagoner County and its attorney to properly process and defend itself in litigation. Counsel may appear telephonically. [Authority: Title 25 Okla. Statute, § 307(B)(4)] The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

John and Pamela Krueger (Estate of Jeffery Krueger) v. Sheriff Chris Elliott, et al

USDC for the Eastern District of Oklahoma

Case No. CIV-23-139-RAW-GLJ

XII. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to reconvene into Open Session at 10:31 a.m. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

- XIII. A motion was made by Commissioner Kelley and seconded by Commissioner Hanning to authorize Chairman Stamps to attend a summary jury trial and settlement conference to be held June 1 and 2, 2026, with full settlement authority pursuant to John and Pamela Krueger (Estate of Jeffery Krueger) v. Sheriff Chris Elliott, et al *USDC for the Eastern District of Oklahoma Case No. CIV-23-139-RAW-GLJ*. The motion was passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.
- XIV. A motion was made by Commissioner Hanning and seconded by Commissioner Kelley to Recess at 10:44 a.m. The motion passed with the following votes: Hanning, aye; Stamps, aye; Kelley, aye.

Presented and approved by the Wagoner County Commission on this 11th day of May 2026.

JAMES HANNING, MEMBER

RANDY STAMPS, CHAIRMAN

TIM KELLEY, VICE-CHAIRMAN

ATTEST: LORI HENDRICKS
WAGONER COUNTY CLERK

BOCC/LH